



Education (Scotland) Act 1971

1971 CHAPTER 42

An Act to re-enact with modifications certain provisions relating to free education; to restore to education authorities the power to charge fees in a limited number of schools; to make provision in respect of fees to be charged for outwith-area pupils; and for connected purposes. [1st July 1971]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. In the Education (Scotland) Act 1962, for section 3 (fees not to be charged in public schools, etc.: exceptions) as set out in section 1(1) of the Education (Scotland) Act 1969, there shall be substituted the following section:—

"Fees not to be charged in public schools, etc.: exceptions.

3.—(1) Subject to the provisions of subsections (2) to (5) of this section, school education and compulsory further education provided by an education authority shall be so provided without payment of fees.

(2) An education authority shall have power to charge fees for school education in some or all of the classes in a limited number of schools under their management.

(3) An education authority may award to any pupil in a class in which fees are charged by virtue of subsection (2) above a scholarship, by way of remission in whole or in part of the fee, in any case where, having regard to the pupil's ability and aptitude, it appears to the authority proper to do so; but such a pupil shall not be regarded for the purposes of section 11(1)(a) of this Act (provision of free books, etc.) as receiving free education.

Re-enactment with modifications of section 3 of Education (Scotland) Act 1962.
1962 c. 47.
1969 c. 49.

(4) An education authority shall not exercise the power conferred by subsection (2) above except where it may be exercised without prejudice to the adequate provision of free school education for their area whether—

- (a) at schools under their management, or
- (b) at other schools by virtue of arrangements made by them with the managers of those schools or, in the case of schools under the management of another education authority, with that authority.

(5) Where an education authority are providing school education for an outwith-area pupil in a school under their management—

- (a) in classes in which fees are charged under the provisions of subsection (2) above, the education authority may charge in respect of that pupil, in addition to the fee charged by virtue of that subsection, such extra fee as they think proper,
- (b) in classes in which no fees are charged, the education authority may charge in respect of that pupil such fee as they think proper.

In this subsection “outwith-area pupil” means, in relation to any education authority, a pupil who is not deemed to belong for the purposes of section 24 of this Act to the area of that authority.

(6) An education authority shall have power to make charges in respect of the use of some or all of—

- (a) any facilities for voluntary further education provided by them,
- (b) any facilities provided by them under section 1(3) of this Act.”

Amendment of section 11(1) of the Education (Scotland) Act 1962.
1962 c. 47.

2. In subsection (1) of section 11 of the Education (Scotland) Act 1962 (provision of free books, etc.) for the words from the beginning to “books,” there shall be substituted the words:—

“An education authority shall provide free of charge for all pupils belonging to their area who are given free education—

- (a) at schools or junior colleges under their management, or

(b) at other schools by virtue of arrangements made by them with the managers of those schools or, in the case of schools under the management of another education authority, with that authority, books,”.

3. In the application of section 4(1) of the Local Government Effect of Act (Scotland) Act 1966 (variation of rate support grant orders) to a ^{on rate} rate support grant order made before the date of the coming into ^{support grant.} force of this Act for a grant period ending after that date, the ^{1966 c. 51.} Secretary of State shall have power to take into consideration any income accrued or likely to accrue, to education authorities (within the meaning of the Education (Scotland) Act 1962) and ^{1962 c. 47.} any relief obtained, or likely to be obtained, by them—

- (a) which is attributable to the coming into force of this Act, and
- (b) which was not taken into consideration in making the rate support grant order the variation of which is in question.

The provisions of this section are without prejudice to section 4(4) of the said Act of 1966 (under which an order under that section may vary the matters prescribed by a rate support grant order).

4.—(1) This Act may be cited as the Education (Scotland) Act ^{Short title,} 1971 and the Education (Scotland) Acts 1939 to 1969 and this ^{citation,} Act may be cited together as the Education (Scotland) Acts ^{construction} 1939 to 1971. ^{repeals,}

(2) Any reference in this Act to any other enactment shall be construed as a reference to that enactment as amended, extended or applied by or under any other enactment, including, unless the context otherwise requires, this Act. <sup>commence-
ment and
extent.</sup>

(3) The provisions of the Education (Scotland) Act 1969 ^{1969 c. 49.} mentioned in the third column of the Schedule to this Act are hereby repealed to the extent specified in that column.

(4) Without prejudice to the operation of section 37 of the Interpretation Act 1889 (which relates to the operation of statutory ^{1889 c. 63.} powers between the passing and commencement of an Act), at any time after the passing of this Act, any scheme required by virtue of section 7 of the Education (Scotland) Act 1962 (schemes for educational provision) for the purposes of section 3 of the said Act as set out in section 1 of this Act, may be prepared and submitted to the Secretary of State for his approval, and the Secretary of State may approve any scheme, so submitted, in accordance with the provisions of section 70 of the said Act

(approval and carrying out of schemes), but so that any scheme approved by virtue of this subsection before the date of the coming into force of this Act shall not have effect before that date; and in this subsection "scheme" shall include a revised scheme or a modification of an existing scheme.

(5) This Act (except subsections (1), (2) and (4) of this section) shall come into force on 1st August 1971.

(6) This Act shall extend to Scotland only.

SCHEDULE

Section 3.

ENACTMENTS REPEALED

Chapter	Short Title	Extent of Repeal
1969 c. 49.	Education (Scotland) Act 1969.	In section 1, in subsection (1), the section 3 inserted into the Education (Scotland) Act 1962, and subsection (3). In Schedule 2, in Part I, in paragraph 7, sub-paragraph (1), and in sub-paragraph (2) head (a).